



SPONSOR: Rep. Harris & Sen. Pinkney

HOUSE OF REPRESENTATIVES
153rd GENERAL ASSEMBLY

HOUSE BILL NO. 70

AN ACT TO AMEND TITLES 16 AND 25 OF THE DELAWARE CODE RELATING TO LEAD-BASED PAINT.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

1 Section 1. Amend Part III, Title 25 of the Delaware Code by making deletions as shown by strike through and
2 insertions as shown by underline as follows:

3 Chapter 54. LEAD-BASED PAINT HAZARD REDUCTION.

4 § 5401. Definitions.

5 For purposes of this chapter:

6 (1) "Alternative housing" means as defined by the regulations promulgated by the Department and shall
7 include reasonable out-of-pocket expenses incurred as a result of relocating the tenant to alternative housing such as
8 rent charged for the alternative housing above the cost of the tenant's existing unit, costs to move back and forth from
9 the alternative housing, and storage costs for personal belongings.

10 (2) "Constructed" means the date on which a construction permit was obtained. If no construction permit was
11 obtained, it shall mean the date that construction was started.

12 (3) "Department" means the Department of Health and Social Services.

13 (4) "Elevated blood lead level" means as defined in § 2601 of Title 16.

14 (5) "Landlord" means the owner or operator of a rental unit.

15 (6) "Lead-based paint hazard" means as defined by regulations promulgated by the Department.

16 (7) "Lead free" means that lead is not present in any form anywhere in the rental unit or premises.

17 (8) "Lead inspector" means as defined in regulations promulgated by the Department.

18 (9) "Lead safe" means that a lead inspector has determined that a rental unit and premises do not have a lead-
19 based paint hazard at the time of the inspection.

20 (10) "Regularly visited" means at least 2 times a week for 3 or more hours at least 10 weeks per year.

21 (11) "Rental unit" means as defined in § 5141 of Title 25.

(12) "Rental unit constructed before" a given date means a rental unit for which a construction permit was obtained before that date. If no permit was obtained, it means that construction of the rental unit was started before that date.

§ 5402. Certification of Rental Units as Lead Free or Lead Safe.

(a) The owner or operator of a rental unit must obtain certification from the Department that a rental unit constructed before January 1, 1978, is "lead free" or "lead safe." The certificate shall be required according to the following schedule:

(1) For rental units constructed before 1950, by January 1, 2028.

(2) For rental units constructed before 1960, by January 1, 2029.

(3) For rental units constructed before 1970, by January 1, 2030.

(4) For rental units constructed before 1978, by January 1, 2031.

(b) The certificate required by subsection (a) of this section must include all of the following information:

(1) The name and address of the landlord and any property manager.

(2) The address of the rental unit.

(3) The name of the lead inspector issuing the certificate.

(4) The date the certificate was issued.

(5) The date of the inspection of the rental unit and premises.

(6) Whether the rental unit and premises are certified as lead free or lead safe.

(c) Only individuals approved as lead inspectors by the Department may issue certificates. No individual may be approved by the Department as a lead inspector unless the individual has successfully completed a training program approved by the Department on the identification and evaluation of lead-based paint hazards or a training program of another state that the Department has determined to be as stringent as the program approved by the Department.

(d) No certificate may be issued unless the lead inspector conducts an inspection and evaluation of the rental unit and premises in a manner required by Department regulations.

(e) The Department shall establish and maintain a list of all lead inspectors. The list shall be available to the public.

(f) The failure to obtain and file a certificate prior to the required date is a violation of this section. The Department may assess a civil penalty up to \$100 per day per rental unit until the required certificate is obtained and filed with the Department. No civil penalty may be imposed if a certificate exemption is issued by the Department prior to the date on which certification is required. A certificate exemption may only be issued upon a showing that it is not possible to

timely obtain a certificate because no lead inspectors approved by the Department are available. The length of the certificate exemption may not exceed 6 months and shall be limited to the period of time required for the applicant to have an inspection conducted by a lead inspector approved by the Department. No certificate exemption may be issued if a lead hazard exists that makes the rental unit uninhabitable unless the landlord provides the tenant alternative housing as required by this chapter.

(g) A tenant must permit reasonable access to the rental unit and premises for an inspection and evaluation by a lead inspector as required by this chapter.

(h) The landlord shall provide for alternative lodging when an inspection and evaluation by a lead inspector, as required by this chapter, reveals that the rental unit is uninhabitable as a result of a lead-based paint hazard. The alternative lodging must be provided before or during the abatement or remediation of the rental unit. The landlord shall provide the tenant with at least 10 days advance notice before the tenant is required to move into or out of the alternative housing. Nothing in this chapter precludes a tenant and landlord from agreeing to terminate a rental agreement so long as such agreement is voluntary and not coerced.

(i) (1) The lead inspector shall inform the Department, the landlord, and tenant of any lead-based paint hazard revealed during an inspection and evaluation of a rental unit. The lead inspector shall provide the landlord and tenant with information regarding the safe remediation and abatement of lead-based paint hazards as required by Department regulations.

(2) If the rental unit is unoccupied and is not deemed uninhabitable due to the existence of a lead hazard, remediation and abatement may be completed by a noncertified contractor or property owner so long as the noncertified contractor or property owner complies with Department guidance relating to the remediation and abatement of lead hazards by noncertified contractors. The Department guidance for noncertified contractors must be available on the Department's website. Once remediation or abatement is completed under this paragraph, a certified lead inspector must conduct an inspection to certify that the rental unit or premises is "lead safe" or "lead free."

(j) Where the property requiring certification is a multi-unit building under the control of one property owner or landlord, the lead inspector may choose 5 units in the building to inspect in lieu of an inspection of all units in the multi-unit building. If the 5 units are selected by the lead inspector at random and are found to be lead safe by the lead inspector, all units in the multi-unit building may be certified as lead safe. Only units individually inspected by a lead inspector may be certified as lead free.

§5403. Recertification of Rental Units as Lead Free or Lead Safe.

(a) A rental unit certified as lead safe must be recertified upon the occurrence of any of the following:

(1) Prior to the commencement of a rental agreement that begins more than 4 years after the date on which the unit was last certified as lead safe.

(2) When an elevated blood lead level is found in an individual residing in the unit.

(3) When a lead-based paint hazard is discovered in the rental unit or premises.

(b) A rental unit certified as lead free must only be recertified if any of the following occurs:

(1) A lead-based paint hazard is discovered in the rental unit or premises.

(2) When an elevated blood lead level is found in an individual residing in the unit.

§ 5404. Disclosure of Certification.

(a) Effective July 1, 2028, every rental agreement on a rental unit constructed prior to January 1, 1978, shall contain a disclosure as to whether the rental unit and premises have been certified as lead safe or lead free, the date of the certification, and the name of the lead inspector issuing the certificate.

(b) The landlord shall provide the tenant with a copy of a lead safe or lead free certificate identified in the rental agreement within 7 days of a request for the certificate. Failure to provide the certificate shall be a violation of this section and the landlord shall be assessed a civil penalty of \$50 per day until the certificate is provided to the tenant.

(c) The Department shall promulgate regulations addressing the format of the disclosures required by this chapter.

§ 5405. Educational Material.

(a) The landlord shall provide the tenant with any educational material required to be provided by Department regulations and the U.S. Environmental Protection Agency relating to lead hazards.

(b) The material shall be provided before the tenant occupies the rental unit. Failure to provide the required educational materials is a violation of this section and the landlord shall be assessed a civil penalty of \$20 per day until the material is provided to the tenant.

(c) Effective July 1, 2028, every rental agreement on a rental unit constructed prior to January 1, 1978, shall require that a tenant acknowledge receipt of the material required by this section.

§ 5406. Lead-based paint hazard control grant and loan program.

(a) The Department shall establish and administer a lead-based paint hazard control grant and loan program to assist eligible landlords with the financial costs in complying with the requirements of this chapter, including any of the following:

(1) Obtaining a required certificate.

(2) The remediation or abatement of lead hazards in a rental unit.

(3) Paying for alternative lodging for tenants when alternative lodging is required by § 5402 of this title.

(b) Preference in grants shall be given for rental units that are the primary residence for children under 6 years old, pregnant individuals, or tenants regularly visited by a child under 6 years old. Funds shall be provided to landlords in the form of grants until January 1, 2028, after which time funds shall be provided to landlords only in the form of loans.

(c) A landlord receiving grant or loan funds pursuant to this section is prohibited from raising the rental fee on the property for which the grant or loan was received for a period of 3 years from the date of the inspection that indicated the need for remediation or abatement of lead hazards.

§ 5407. Anti-discrimination provision.

(a) It is unlawful to discriminate against an individual because the individual has made a complaint, testified, assisted, or participated in any manner in an investigation, proceeding, or hearing relating to the presence of a lead-based paint hazard in a rental unit or premises, or the failure to register the rental unit or to obtain or provide a certificate.

(b) It is unlawful to discriminate against an individual because the individual or someone residing with the individual in a rental unit has an elevated blood lead level or is perceived as having an elevated blood lead level. It shall also be unlawful to discriminate against an individual seeking to rent a rental unit because the individual or someone who would be residing in the rental unit has an elevated blood lead level or is perceived as having an elevated blood lead level.

(c) It is unlawful to discriminate against an individual because the individual or someone who is or would be residing in the rental unit is pregnant or is under 6 years old, unless the rental unit is qualified as housing for older persons under the Delaware Fair Housing Act, under Chapter 46 of Title 6.

(d) Prohibited discriminatory acts include the following:

(1) Arbitrary refusal to renew a rental agreement.

(2) Arbitrary refusal to enter into a rental agreement.

(3) Termination of tenancy.

(4) Arbitrary rent increase or decrease in service to which a tenant is entitled.

(5) Constructive eviction.

§5408. Feasibility Review.

(a) There is established a committee known as the “Lead-Based Paint Remediation Certification Committee” (“the Committee”). The Committee shall consist of 5 members as follows:

(1) Two members appointed by the Governor, after consultation with Delaware business organizations and tenant advocacy organizations.

a. One member appointed under paragraph (a)(1) of this section shall represent rental housing providers.

b. One member appointed under paragraph (a)(1) of this section shall represent tenants.

(2) One member appointed by the Speaker of the House of Representatives.

(3) One member appointed by the President Pro Tem of the State Senate.

(4) The Secretary of Health and Social Services.

(b) Staff support for the Committee shall be provided by the Department.

(c) The Committee shall, on an ongoing basis, study the available workforce and available public funding to support the inspection and remediation efforts required by this chapter, along with any other factors impacting property owners' ability to comply with deadlines established in § 5402 of this title. The Committee shall invite and accept input from the public in fulfilling its duties.

(d) By January 1, 2028, the Committee shall issue a formal report to the Governor, the General Assembly, and the Director and Librarian of the Division of Legislative Services as to whether it is feasible for persons subject to the deadlines established in § 5402 of this title to comply with those deadlines. The Committee shall issue a feasibility report on January 1 of each calendar year through January 1, 2030. Every report issued pursuant to this subparagraph shall, if the Committee believes existing deadlines are not feasible, propose specific new deadlines to replace those enumerated in § 5402 of this title or enacted subsequently pursuant to this section.

(e) The Committee is dissolved upon the issuance of a report indicating that no new deadlines are required pursuant to subsection (d) of this section.

§5409. Regulations.

The Department shall adopt regulations to implement this chapter.

Section 2. Amend § 5305, Title 25 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows:

§ 5305. Landlord obligations relating to the rental unit.

(a) The landlord shall, at all times during the ~~tenancy~~; tenancy, do all of the following:

(1) Comply with all applicable provisions of any state or local statute, code, regulation or ordinance governing the maintenance, construction, use or appearance of the rental unit and the property of which it is a ~~part~~; part.

(2) Provide a rental unit which shall not endanger the health, welfare or safety of the tenants or occupants and which is fit for the purpose for which it is expressly ~~rented~~; rented.

(3) Keep in a clean and sanitary condition all common areas of the buildings, grounds, facilities and appurtenances thereto which are maintained by the ~~landlord~~; landlord.

(4) Make all repairs and arrangements necessary to put and keep the rental unit and the appurtenances thereto in as good a condition as they were, or ought by law or agreement to have been, at the commencement of the ~~tenancy~~; and tenancy.

(5) Maintain all electrical, plumbing and other facilities supplied by the landlord in good working order.

(6) Provide a rental unit that is free of lead-based paint hazards and certified as lead safe or lead free as required by Chapter 54 of this title.

Section 3. Amend § 2612, Title 16 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows:

§ 2612. Remediation and abatement duties of Delaware State Lead-Based Paint Program.

(d) Competitive bid invitations issued by the Program for lead-based paint abatement or remediation must contain all of the following:

(1) Provisions requiring verification by bidders of procedures to be used for risk assessment.

(2) Provisions requiring verification by bidders of procedures to be specified by the Program to limit the generation of lead dust, contain lead dust within work areas, conduct daily and final cleanings, and perform clearance testing.

(3) Provisions requiring verification by bidders of procedures regarding treatment of exteriors, including siding and carpentry repairs, porch repairs, and garage repairs.

(4) Provisions requiring verification by bidders regarding the testing and treatment of soil.

(5) Provisions requiring verification by bidders of procedures regarding interior treatment, including initial and daily cleaning; repairs and component replacements; paint stabilization treatment of windows, doors, stairs, walls, ceilings, hard surface and basement floors, and radiators; and final cleaning.

(6) Provisions specifically providing for the safety of workers performing lead-based paint abatement or remediation work, including free blood testing for workers performing abatement or remediation work at least every 3 months.

Section 4. This Act is effective immediately and must be implemented 6 months following the date of publication in the Register of Regulations of a notice by the Secretary of the Department of Health and Social Services that all of the following has occurred:

(1) Final regulations to implement this Act have been adopted.

(2) Sufficient funding has been appropriated and is available to implement this Act.

SYNOPSIS

This Act requires that all rental units constructed before January 1, 1978, are certified as lead free or lead safe by a specific deadline. Lead inspectors must be approved by the State to conduct inspections and if necessary, lead abatement and remediation. A certificate exemption may be issued for no more than 6 months. If the rental unit is uninhabitable, the landlord must provide alternative housing while the unit undergoes lead abatement or remediation. Recertification for lead safe units must occur prior to commencement of any rental agreement more than 4 years after the date the unit was last certified. Units must be recertified as lead free or lead safe if a lead-based paint hazard is discovered in the rental unit or if individuals residing in the unit develop elevated lead blood levels. Beginning July 1, 2028, every rental unit constructed prior to January 1, 1978, shall include a disclosure as to whether the rental unit has been certified as lead safe or lead free.

To help eligible landlords obtain lead certification or remediate their units, this Act creates a Lead-based Paint Hazard Control Grant and Loan Program. Preference for grants shall be given to families with young children, pregnant individuals, or tenants regularly visited by children under 6 years old. This Act also establishes a Lead-Based Paint Remediation Certification Committee to study the available workforce and available public funding to support the inspection and remediation efforts required by this Act along with the feasibility of meeting deadlines established under this Act.

This Act also does the following:

(1) Prohibits landlords from discriminating against individuals because they make a complaint or assist in an investigation or proceeding relating to a lead-based paint hazard in a rental unit or premises.

(2) Prohibits landlords from discriminating against individuals residing in a unit who have elevated blood lead levels or children or pregnant individuals who may be affected by lead-based paint hazards.

(3) Requires that contractors performing lead-based paint abatement or remediation under the Delaware State Lead-Based Paint Program provide for the safety of workers performing lead-based paint remediation work, including free blood testing for workers at least every 3 months.

This Act take effect 6 months after notice is given by the Secretary of DHSS that final regulations have been adopted and sufficient funding is available.